



POLICE DEPARTMENT

August 21, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Vanessa Rodriguez
Tax Registry No. 939356
Police Service Area 1
Disciplinary Case No. 2012-7550

The above-named member of the Department appeared before me on February 23 and 24 2015,¹ charged with the following:

1. Said Police Officer Vanessa Rodriguez, while assigned to the 102nd Precinct and temporarily assigned to Patrol Borough Queens South, on or about June 2, 2012, at about 1915 hours, while off duty, in or about the H&M store located at 90-15 Queens Boulevard, Queens Center Mall, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer wrongfully stole property, a sweater, from said store.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT
NYS Penal Law Section 155.25 – PETIT LARCENY

2. Said Police Officer Vanessa Rodriguez, while assigned to the 102nd Precinct and temporarily assigned to Patrol Borough Queens South, on or about June 2, 2012, at about 1915 hours, while off duty, in or about the H&M store located at 90-15 Queens Boulevard, Queens Center Mall, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer wrongfully possessed stolen property, a sweater, from said store.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT
NYS Penal Law Section 165.40 – CRIMINAL POSSESSION OF STOLEN PROPERTY
IN THE FIFTH DEGREE

3. Said Police Officer Vanessa Rodriguez, while assigned to the 102nd Precinct and temporarily assigned to Patrol Borough Queens South, on or about June 2, 2012, at about 1920 hours, while off duty, in or about the H&M store located at 90-15 Queens Boulevard, Queens Center Mall, engaged in conduct prejudicial to the good order, efficiency, or discipline of the

¹ The record was held open until April 6, 2015 for the submission of written closing arguments.

Department, in that said Police Officer, having been apprehended and detained by store security guards for stealing property, wrongfully stated to said security guards, "Wait until I see you guys on the street."

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT

The Department was represented by David Green, Esq., Department Advocate's Office.
Respondent was represented by Marvyn Kornberg, Esq.

Respondent, through her counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Not Guilty of Specification Nos. 1 and 2. Respondent is found Guilty of Specification No. 3.

SUMMARY OF EVIDENCE PRESENTED

Introduction

It is not disputed that at about 7:00 p.m. on June 2, 2012, Respondent was off duty and that she entered the H&M clothing store located at 90-15 Queens Boulevard inside the Queens Center Mall ("the store") along with [REDACTED] Jennifer Rodriguez. Some of their movements inside the store were recorded by store security cameras [Department Exhibit (DX) 1 and 2 are the video recordings.]

The Department's Case

The Department called Christopher Young and John Williams as witnesses.

Christopher Young

Young, who was employed at the store as a loss prevention officer on June 2, 2012, testified that he first took notice of Respondent inside the store because she was wearing sunglasses as she appeared to be looking up toward the video cameras, and she was picking up and placing clothing items on her outstretched arm and moving them around. He explained that these were suspicious behaviors that he had been trained to look for as a loss prevention officer. Just before she exited the store, Respondent placed all of the items but one down on a counter. The one item she continued to possess was a white sweater which he later ascertained had a sales price of \$17.95. She exited the store with the sweater, which had not been paid for, on her arm. When he observed Respondent leaving the store with an unpaid sweater still on her arm, he ran after her. He found her on the mall escalator where he observed her passing the sweater to a woman, who he later learned [REDACTED] who stuffed the sweater into a handbag.

Young approached Respondent and Jennifer, identified himself, and asked them if they knew why he was stopping them. Respondent said that she did not know the reason for the stop. Young mentioned the sweater and Respondent told him that she was going to the nearby Forever 21 store and was then going to return the sweater. Young noted that it was not necessary to take the escalator to get from H&M to Forever 21. Jennifer took the sweater out of her bag and Respondent identified herself as a police officer. Young told her that she needed to return to the store to fill out paperwork in the security office. Respondent and Jennifer went with Young to the store security office, where Respondent was presented with two documents. Young stated

that it was store policy that the police did not need to be called unless the stolen item was valued at \$50.00 or greater.

In the security office, when Young asked to see identification, Respondent showed him her Department identification card. Respondent was calm as she signed an H&M Statement of Admission (DX 3) and a Criminal Trespass Notice (DX 4). As Young was processing this paperwork, Respondent spoke with Young's supervisor, John Williams. Young overheard Respondent state, "Better wait until I see you outside." This statement prompted Williams to call 911.

On cross-examination, Young testified that Respondent can be seen on the video walking around the store, picking up various items, putting other items down, and occasionally adjusting the position of the items on her arm. Young agreed that because Respondent was wearing sunglasses, he could not see her eyes. Young asserted that Respondent is seen on the video making a quick pulling motion with one of her hands and he assumed that this motion was Respondent pulling the price tag off the sweater. He agreed that he had told Department investigators that his observation of Respondent pulling off the price tag occurred outside of camera range. He never attempted to find the price tag that he believed had been pulled off.

When Young confronted Respondent at the escalator, she first told him that she did not realize that she had walked out of the store with the sweater. Young did not recall if he heard a phone ringing. Respondent was cooperative inside the security office until a certain point in her conversation with Williams. He heard Williams laughing before Respondent made her comment about seeing him outside. Young did not know what Respondent was referring to but she became belligerent after that and, as a result, Young and Williams conversed and agreed that it would be best to have Respondent arrested because they feared she would retaliate against them.

John Williams

Williams, who was employed by the store as the loss prevention supervisor on June 2, 2012, testified that he first noticed Jennifer exhibiting suspicious behavior, such as "sticking to corners" and looking at the video cameras. He subsequently observed Jennifer and Respondent huddled together talking. He was in the security office when Young entered it with Respondent. He learned that Respondent was a police officer when she identified herself and displayed her Department identification card. Williams asked Respondent a number of times why she had taken the sweater. Respondent initially stated that she had not meant to walk out of the store with the sweater but she later said that it was her plan to take the sweater to Forever 21 to compare prices.

While Young was preparing the Statement of Admission (DX 3) and the Criminal Trespass Notice (DX 4), Williams tried to joke around with Respondent to make her feel more comfortable. At one point, he jokingly told her, "Since we are going to let you go . . . you should give us a PBA card." Respondent's face turned "mean", and she replied, "You will be lucky if I don't see you outside." Williams asserted that based on Respondent's rude attitude and the fact that she was unwilling to admit her wrongdoing, he decided to have her arrested.

On cross-examination, when Williams testified that he did not recall discussing with Young that it would be best to arrest Respondent because she might retaliate against them by issuing their cars summonses, he was confronted with a statement he made during his IAB interview that he and Young had discussed that Respondent might ticket their cars. Williams answered that he did not recall having said this at his IAB interview.

Respondent's Case

Respondent called Sergeant Ronald Smith and Jennifer Rodriguez as witnesses and she testified in her own behalf.

Sergeant Ronald Smith

Smith, assigned to the Queens South Investigations Unit, was the investigating officer regarding Respondent's case. He was present during testimony at Respondent's criminal trial. He heard Williams testify that he and Young had discussed the possibility of Respondent retaliating against them by issuing their cars summonses and that it might be better for them to have her arrested. He also heard Young testify that he had observed Respondent outside the store for eight seconds before he approached her but that Young later changed his testimony and expanded this period of observation to 20 seconds. Based on Young's testimony, Smith wrote in his report that part of Young's testimony had been "inconsistent."

Jennifer Rodriguez

Rodriguez testified that when she and Respondent entered the store they went to different areas of the store. She later met up with [REDACTED] to ask her opinion regarding an item of clothing. They both walked toward the checkout register carrying multiple items in their arms that they wanted to purchase, but they changed their minds when they saw that the line at the register was very long. They placed the merchandise they were carrying on a rack near the door and they exited the store. She did not see any items remaining on Respondent's arm though she was not really paying attention. They were both carrying their handbags. While they were on the escalator going to Forever 21, Respondent's phone rang. Respondent looked for her phone in

her pocketbook and Rodriguez assisted her by removing the sweater that was on Respondent's forearm. Shortly thereafter, Young approached them and rudely instructed them to come with him. He told Respondent that she took something. Respondent asked what he was talking about and Young pointed to the sweater. Respondent identified herself as a police officer and informed Young that it was a mistake. Young told her that she needed to return to the store to sign some papers.

On cross-examination, Rodriguez testified that she could not recall if she noticed whether Respondent was carrying a sweater before they entered the store. Rodriguez was confused when Young said they had taken something from the store. She explained, "We did not go in there to steal, so for someone to accuse us, that's why I was confused."

Respondent

Respondent recalled she was carrying her handbag and a cup of coffee when she entered the store with Rodriguez. She did not look around for security cameras or secrete herself in any way. She picked out two bathing suits, several tank tops, and other articles of clothing. She carried these items over her left arm. She met up with Rodriguez to discuss the clothes and the fact that she wanted to leave the store to get something to eat. She and Rodriguez walked toward the register to pay but the line was so long that Respondent was unwilling to wait. Rodriguez suggested that they go to Forever 21 before eating. On their way out of the store, they put down the merchandise that they were carrying down on a table. Respondent recalled that she put down seven or eight items. She thought at the time that she had put everything that she had been carrying down on the table. She did not realize that she still had a sweater on her arm. She never took the price tag off the sweater.

Her phone started to ring while they were on the escalator. She was about to look in her bag for the phone when Rodriguez took a sweater off of her arm. At that point, Young grabbed her and told her that she needed to return to the store because she had taken something. She asked him what he was talking about and he mentioned the sweater. She showed Young her Department identification card. Young repeated that she needed to return to the store. Respondent told him that she took the sweater unintentionally and that he was blowing the situation out of proportion. Rodriguez told him that they had been on their way to Forever 21 and that the sweater had been taken by accident.

Because Young had accused her of stealing, when they entered the security office she told Young that she wanted to call her union delegate. Young told her she would be able to leave once she signed some paperwork. Respondent explained that she signed the Statement of Admission and the Criminal Trespass Notice because she had left the store without paying for the sweater even though her possession of the sweater outside the store was unintentional.

Respondent testified that Williams began "playing around" by telling Young, "Oh, dude, now we're in trouble because you are doing this to a police officer." Williams then repeated this remark. Respondent recalled that she then told Williams, "Sir, look, I have a thousand dollar bag, almost \$500 glasses, I have three to four hundred dollars in my pocket. If you want, I will pay for that sweater. It was all unintentional." Respondent testified that Williams then told Young, "Dude, now they are going to start giving us tickets." After Respondent looked at Williams, he said, "You know what, now that we are going to let you leave, why don't you just give us a PBA card." Respondent testified that she then told Williams, "Ha. ha. you're f'ing funny," and looked down to her phone. Young then looked at Williams and he "gets pissed off that I said that." Williams then told Young, "Dude, they are going to give us tickets. I'm telling

you, they are going to start following us and they are going to give us tickets." When Williams again asked her, "Are you going to give me a PBA card?" she replied, "How about I give you both a summons. Can you let him [Young] finish his work? I am getting nervous. I have to go eat." Respondent testified that her remarks appeared to upset Young who then grabbed up all the paperwork and stormed out of the room.

Respondent asserted that she did not actually threaten to give Williams and Young each a summons. She explained that she mentioned summonses to them only because she felt that they were trying to use her in that "because they are letting me leave I have to give them a PBA card." Respondent was then arrested and charged with stealing the sweater. A jury trial in Criminal Court Queens County resulted in a verdict of not guilty.

On cross-examination, Respondent testified that the first time Williams asked her for PBA cards, she believed he was joking and that she made her "How about I give you both a summons" comment only after Williams repeated his request. Respondent recalled that she was talking to Rodriguez while she dropped the merchandise on the table at the store exit. She did not realize that she had walked out with a sweater on her arm until Young approached her outside the store. Respondent testified that she did not read the Statement of Admission or the Criminal Trespass Notice before signing them. Young filled in all the information and just pointed out to her the lines on which she needed to sign.

FINDINGS AND ANALYSIS

Specification Nos. 1 and 2

It is charged that Respondent committed the crimes of petit larceny and criminal possession of stolen property by stealing a sweater from the H&M store and by possessing this stolen property. The charges cite to Penal Law Section 155.25, petit larceny, and Penal Law Section 165.40, possession of stolen property in the fifth degree. Section 155.25 provides that "a person is guilty of petit larceny when he steals property." Stealing property is defined as wrongfully taking, obtaining or withholding property with intent to deprive another of property or to appropriate the same to oneself. Penal Law § 155.05. A person is guilty of criminal possession of stolen property "when he knowingly possesses stolen property, with intent to benefit himself . . ." Penal Law § 165.40.

Respondent does not dispute that she left the store with a light, white sweater on her left arm without having paid for the sweater. The case therefore turns entirely on whether the Department has proved by a preponderance of the evidence that Respondent intended to take the sweater from the store without paying for it.

The Video Evidence (DX 1 and DX 2)

Respondent testified that when she put the clothing items she had selected and carried inside the store down on a table, she believed that she had put everything that she had been carrying on the table and that she did not realize that a white sweater was still on her left arm as she walked out of the store. Respondent argued that her claim that she lacked intent to steal the sweater is supported by the fact that a recording made by a store surveillance camera shows that when she walked out of the store, she was carrying the handle of her purse on her left arm and

the sweater was draped over her left arm. Since it is logical that a shoplifter would attempt to conceal the item they are stealing by hiding it under their clothing, inside a bag, or underneath items they have paid for, the relatively open manner of removal here appears to be inconsistent with intentional concealment of stolen merchandise.

Also, Young claimed that a store surveillance camera (DX 2, Camera 4 at 7:31.00) caught Respondent in the act of ripping off the price tag from a sweater. Although Respondent is seen on this video moving her arm, it is not at all clear that she is pulling off a price tag. The same store surveillance camera later (at 7:33 to 7:35) depicts Respondent walking around the store moving clothing items around on her left arm, flipping colored clothing items over a white item on her left arm, transferring items from her left arm to her right arm and then holding clothing items out in both hands including a white item in each hand. However, these movements, although they could be viewed as suspicious, do not establish that it is more likely than not that Respondent was secreting a white sweater on her left arm so that she could steal the sweater.

In conclusion, the video evidence depicting Respondent's actions and movements inside the store is equivocal and, therefore, this video evidence is not dispositive on the central question of whether Respondent intentionally stole the sweater. In his written closing argument, the Assistant Department Advocate did not make reference to the store surveillance video evidence he introduced at this trial.

The Sweater's Price Tag

Although, as noted above, Young testified that he saw Respondent pulling off a price tag, Young conceded on cross-examination that he did not see the actual tag; that he assumed she was

pulling a tag off; that he did not see a tag come off; that when he stopped Respondent outside the store he did not check to see if the price tag on the sweater she was carrying was still there or had been had been removed; and that neither he nor Williams ever examined the floor in the area where Respondent made her hand motion to attempt to find the supposedly ripped off price tag. As a result, the Department was unable to refute Respondent's claim that she never took the price tag off the sweater and that it was still on the sweater when Young stopped her outside the store and took possession of the sweater.

The Testimony of Williams and Young

The believability of all of William's testimony at this trial is open to question based on his claim that he could not recall a discussion with Young that he was able to recall on two prior occasions. When Williams was asked on cross-examination whether he had discussed with Young that it would be best to arrest Respondent because she might retaliate against them by issuing their cars summonses, he answered that he could not recall this discussion. However, during his IAB interview he had stated that he and Young had discussed that Respondent might ticket their cars, and Smith recalled that during William's testimony at Respondent's criminal trial he heard Williams testify that he and Young had discussed the possibility of Respondent retaliating against them by issuing their cars summonses and that it might be better for them to have her arrested.

I also do not credit William's testimony at this trial that he could not recall whether Respondent was told that she would not be arrested if she signed the "Criminal Trespass Notice" (DX 4). Since the only incentive Williams and Young possessed which they could offer Respondent to persuade her to sign this form was the assurance that if she did so she could

immediately leave the security office and avoid being be arrested, I find that Williams refusal to candidly acknowledge that he and Young had offered her this incentive was disingenuous.

Young also offered testimony at this trial which was inconsistent with his prior testimony. At this trial, Young testified that he did not see Respondent dump clothing down just before she left the store; that he approached Respondent at the top of the "up" escalator; and that she only told him that she was "on the job." However, at his IAB interview he stated that Respondent "threw clothes down and just walked right out;" that he had approached Respondent on the "down" escalator; and that when he confronted Respondent "she reached into her purse and showed me an (NYPD) ID."

Young's testimony at this trial must also be examined in light of the fact that Smith wrote in his report that Young's testimony at Respondent's criminal trial was "inconsistent" in that Young had changed his testimony that he had observed Respondent outside the store for only eight seconds before he approached her and expanded this period of observation to 20 seconds. Also, although Young testified at this trial that he believed that all of his observations of Respondent were made viewing her on the camera monitors, Young stated at his IAB interview that he had observed Respondent tear a tag off the sweater while out of the camera range.

Finally, it is difficult to credit Young's testimony at this trial that even though he was in the same room with Williams and Respondent he never heard Williams say anything about a PBA card; that he only heard Williams laughing; that he only heard Respondent say "Wait for when I see you outside;" that he did not know what she was referring to; and that he had no recollection of he and Williams discussing that Respondent might ticket their cars, even though Williams related this conversation during his IAB interview and during his testimony at Respondent's criminal trial.

Respondent's Reaction to William's Request for PBA Cards

I find it especially significant that when Williams asked Respondent to provide him and Young with PBA cards she not only refused but reacted in a manner that she knew was likely to annoy Williams. If Respondent had intentionally stolen the sweater, she would have been highly conscious of her guilt and the possible consequences of her crime. Thus, it is likely that she would have readily agreed to get PBA cards, which the PBA provides to police officers practically for free, for Williams and Young because she would have wanted to keep them happy since they had agreed to let her go and not arrest her.

By not only implicitly refusing Respondent Williams' request to get PBA cards for him and Young but also adding, "How about I give you both summonses," Respondent was taking the chance they would become angry at her, change their minds and decide to have her arrested, which is exactly what happened. Thus, Respondent's reaction to Williams' request for PBA cards is inconsistent with what would be expected from a shoplifter who is conscious of her guilt and the possible consequences of her crime.

The "Criminal Trespass Notice" and the "Statement of Admission" that Respondent Signed

Finally, the Department argues that Respondent admitted to unlawful removal of the items by signing the "Criminal Trespass Notice" (DX 4) and the "Statement of Admission" (DX 3). Respondent testified that she signed the forms without reading them because she was hungry and because she just wanted to get out of the security office. Although police officers are trained not to sign any document without first reading it carefully, I find that the boiler plate language utilized on these forms and the varying type sizes are problematic with regard to providing clear notice that the signer is admitting to having committed the crime of larceny.

The Criminal Trespass Notice (DX 4) form states that the signer "understand(s) that my privilege to enter all H&M Hennes & Mauritz AB stores is revoked. If I re-enter any of these stores, I may be arrested for the crime of Trespass, pursuant to section 140.10(a) paragraph 5 of the Penal Law, State of New York and any other appropriate criminal charge. 140.5 Trespass A person is guilty of trespass when he/she knowingly enters or remains unlawfully in or upon premises. The above named individual was given this Trespass Notice after he/she was observed inside the store located at ... engaging in illegal conduct to wit." Thus, the bulk of this form solely concerned notifying Respondent that she was being banned from re-entering the store.

In smaller type-face the form directs the loss prevention officer to "(d)escribe individuals [sic] conduct in detail, e.g. individual was observed removing and concealing shirts and attempting to leave the store." Young wrote in the space provided: "Individual was observed removing and concealing 1 knitwear and attempting to leave the store." Thus, Young merely copied the boiler plate language which is offered as an example of what to write on the form. In doing so he made an inaccurate entry on the form since he knew that he had apprehended Respondent on an escalator inside the mall, not as she was "attempting to leave the store."

As to the "Statement of Admission" (DX 3) form, it notified Respondent that she "hereby admit(s) to taking the following merchandise without permission or consent from H&M...in the amount of \$____" Young wrote "17.95." It also notified Respondent that she "hereby admit(s) that the below listed merchandise is a complete list of all merchandise taken by me without permission or consent." Young entered: "1 knitwear." Finally, the bottom of the form contains the following statement: "Adult Statement: I have read the information above and hereby state that I was in H&M store at...and while there took the above listed items without making any attempt to pay for them. When I took the above listed property I did so with the intent to

appropriate it to my own use or disposition, without intending to pay for the same or in any way to compensate H&M whom I known [sic] to be the true owner thereof.”

The fact that an extremely small type face is utilized on this “Statement of Admission” form makes it difficult to categorically conclude that Respondent was placed on clear notice that she was admitting to an intentional theft.

Conclusion

Weighing all the evidence and testimony in the record, I find that the Department has failed to prove by a preponderance of the credible evidence that Respondent committed an intentional theft. These findings are consistent with previous disciplinary decisions where a Respondent gave a plausible account that she was not aware that she had left a store with an item she had not paid for and where the testimony of the security personnel was problematic. *See Case No. 74459/99* (June 19, 2001) (finding Respondent not guilty of shoplifting small items where Respondent gave a credible account of how items mistakenly landed in her bag and where security guard’s recollection had lapses as to certain important details); and *Case No. 71486/96* (May 20, 1998) (finding Respondent not guilty of shoplifting from a store where evidence suggested merely careless neglect to pay for a pack of batteries he had placed in his pocket).

See also Case No. 79269/03 (May 9, 2005) where a member was found not guilty of wrongfully stealing clothing from a store. The Trial Commissioner found that a security guard’s testimony that he believed Respondent’s behavior was possibly indicative of shoplifting was insufficient to establish that Respondent had committed intentional theft; and *Case No. 6752/12* (Feb. 25, 2013) where a member was found not guilty of intentionally stealing two boxes of condoms from a Target store because the Department was unable to refute his claim that he did

not realize that he had the two boxes of condoms in his shopping cart and the video evidence did not clearly depict an intentional larceny.

Finally, most recently in *Case No. 10728/15* (July 27, 2015), a police officer was found not guilty of stealing a salmon and an item of clothing (a knit hat) from a store. In that case, as here, the Trial Commissioner found that the officer had not attempted to conceal the unpaid for clothing item, which was discovered by a security guard in the top basket of her shopping cart. As to the salmon, the Trial Commissioner found that there was no video evidence to support the security guard's claim that the officer had pushed her daughter's jacket over the salmon to hide it. Also in that case, as here, although the officer signed a "Statement of Admission" form and a trespass notice form, the officer asserted that she had signed the forms without reading them because signing would allow her to get her children out of the store immediately and because she had been told that she would not be arrested if she signed the forms.

Since the Department did not meet its burden of proof, Respondent is found Not Guilty of Specification Nos. 1 and 2.

Specification No. 3

It is charged that Respondent engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that she wrongfully told H&M store security guards, "Wait until I see you guys on the street."

Young testified that he only heard Respondent tell Williams, "Wait for when I see you outside;" and that he did not know what Respondent had meant by this comment. Williams testified that after he "jokingly" said to Respondent, "You should give us PBA cards," Respondent told him, "You'll be lucky if I don't see you outside." Most significantly,

Respondent acknowledged that after Williams asked her to get PBA cards for him and Young, she told him, "Ha, ha, you're funny. How about I give you both a summons." Since, as a uniformed member of the Department, Respondent had the power to issue summonses to civilians while on duty, her threat to "give you both a summons" was not an idle threat and it is clear that Williams interpreted her remark as a genuine threat because he immediately reneged on the previous promise that if Respondent signed the Statement of Admission she would not be arrested. Although the statement that Respondent has admitted to making does not precisely mirror the "wait until I see you guys on the street" language contained in this charge, Respondent's threat to "give you both a summons," constituted the same verbal message since it carried the same implied threat that if she saw them outside the store while she was on duty she would take police action against them. Uniformed members of the Department are not permitted to threaten to use their police powers, such as their authority to issue summonses, when they become involved in an off duty verbal dispute with a civilian.

Since I find that, based on her own testimony, Respondent threatened to issue summonses to two security guards who had detained her on suspicion of shoplifting, Respondent is found Guilty of Specification No. 3.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 11, 2005. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum. Respondent has no prior formal disciplinary record.

Respondent has been found guilty of engaging in conduct prejudicial to the good order, efficiency, or discipline of the Department in that she wrongfully told store security guards who had detained her, "Wait until I see you guys on the street."

Respondent's action of threatening to use her police powers, specifically her power to issue summonses, against two security guards constitutes serious misconduct, whether or not Respondent actually intended to make good on her threat.

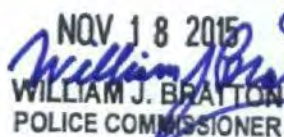
In *Case No. 83186/07* (March 15, 2010) a seven-year police officer who had no prior disciplinary record forfeited a penalty of 20 vacation days after he pleaded guilty to engaging in off duty misconduct by threatening to arrest a person he knew had not committed any offense. The Respondent in that case had offered to help a friend by serving family court papers for him on an individual. When the individual refused to accept the papers, the Respondent identified himself as a police officer and told the individual that if he continued to refuse to allow him to hand him the papers he was "going to do it the hard way at the precinct."

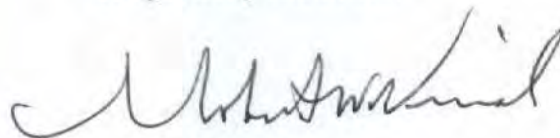
After Respondent was arrested, she was suspended from duty on June 2, 2012. Her suspension ended on July 1, 2012, and she was placed on modified assignment the following day.

It is recommended that Respondent forfeit the 30 days she served on pretrial suspension.

Respectfully submitted,

APPROVED

NQV 1 8 2015

WILLIAM J. BRATTON
POLICE COMMISSIONER



Robert W. Vinal
Assistant Deputy Commissioner – Trials

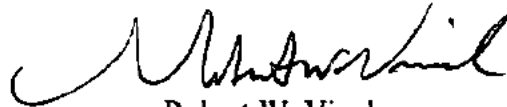
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER VANESSA RODRIGUEZ
TAX REGISTRY NO. 939356
DISCIPLINARY CASE NO. 2012-7550

Respondent received an overall rating of 3.5 on her 2013 annual performance evaluation, 3.0 on her 2012 evaluation, and 4.0 on her 2011 evaluation. She has no medals. [REDACTED]

[REDACTED] She has no prior formal disciplinary record. On July 19, 2012, she was placed in Level 2 Discipline Monitoring which is continuing.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner – Trials